

Court No. - 1

Case :- WRIT - C No. - 3307 of 2020

Petitioner :- Subhash

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Prem Chand Saroj

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

Heard Sri Prem Chand Saroj, learned counsel for the petitioner, Sri Rajesh Yadav, learned counsel appearing for respondent nos.3 to 5, learned Standing Counsel for respondent nos. 1 & 2 and perused the record.

The controversy involved in the present case has already travelled before this Court in connection with the same village vide Writ-C No.24320 of 2019 (Ram Singh Vs. State of U.P. and 4 Others) which was disposed of on 8th August, 2019 with the following directions:-

"In case the demand is illegal, the petitioner may approach the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005 within a period of 15 days from today. In case, he so approaches the Executive Engineer, he shall examine the matter, and on verification of the correct facts shall pass speaking order in regard to the liability of the petitioner to pay the aforesaid dues in accordance with law most expeditiously if possible within a period of six weeks from the date of submission of representation. For a period of three months or till the representation is considered and decided whichever is earlier, no recovery shall be made from the petitioner in pursuance of the impugned demand notice."

Learned counsel appearing for the respondents Corporation does not dispute the above fact and the order passed by this Court.

In view of the above, in respect of the demand notice issued to the petitioner impugned in the present writ petition, this writ petition is also disposed of in terms of the order dated 8th August, 2019 passed in Writ-C No.24320 of 2019.

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Order Date :- 31.1.2020

NS